

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1712

By: Bennett

AS INTRODUCED

An Act relating to elections; amending 26 O.S. 2021, Section 1-104, which relates to closed primaries; establishing that no political party may hold closed primaries without paying back cost; directing political parties to notify State Election Board of intent to hold closed or open primaries; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 26 O.S. 2021, Section 1-104, is amended to read as follows:

Section 1-104. A. No ~~registered voter~~ political party shall be permitted to limit who may vote in any Primary Election or Runoff Primary Election of ~~any~~ that political party except if the political party ~~of which his registration form shows him to be a member,~~ has agreed to pay back the cost of that political party's Primary Election and Runoff Primary Election.

B. 1. A recognized political party may permit registered voters designated as Independents pursuant to the provisions of

1 Section 4-112 of this title to vote in a Primary Election or Runoff
2 Primary Election of the party.

3 2. The state ~~chairman~~ chairperson of the party shall, between
4 November 1 and 30 of every odd-numbered year, notify the Secretary
5 of the State Election Board as to whether or not the party intends
6 to ~~permit registered voters designated as Independents to~~ limit who
7 may vote in a Primary Election or Runoff Primary Election of the
8 party. If the state ~~chairman~~ chairperson notifies the Secretary of
9 the State Election Board of the party's intention to so ~~permit,~~
10 ~~registered voters designated as Independents shall be permitted to~~
11 ~~vote in any Primary Election or Runoff Primary Election of the party~~
12 ~~held in the following~~ limit the party's Primary Election or Runoff
13 Primary Election, that party shall return to the state the total
14 cost of that party's closed elections held in the next two (2)
15 calendar years. If the state ~~chairman~~ chairperson of one party
16 notifies the Secretary of the State Election Board of the party's
17 intent to ~~so~~ permit all registered voters to participate in that
18 party's Primary Election and Runoff Primary Election, the
19 notification period specified in this paragraph shall be extended to
20 December 15 for the state ~~chairman~~ chairperson of any other party to
21 so notify or to change prior notification. A registered voter
22 designated as Independent shall not be permitted to vote in a
23 Primary Election or Runoff Primary Election of more than one party.

1 3. Failure to so notify the Secretary of the State Election
2 Board shall serve to prohibit registered voters designated as
3 Independents or another political party from voting in a Primary
4 Election or Runoff Primary Election of the party.

5 4. A group of persons seeking to form a recognized political
6 party pursuant to the provisions of Section 1-108 of this title
7 shall, upon filing of the petitions seeking recognition of the
8 political party with the Secretary of the State Election Board,
9 notify the Secretary of the State Election Board as to whether or
10 not the party intends to permit registered voters designated as
11 Independents or another political party to vote in a Primary
12 Election or Runoff Primary Election of the party. If the party is
13 recognized and the group of persons seeking recognition of the party
14 notifies the Secretary of the State Election Board of such
15 intention, registered voters designated as Independents or another
16 political party shall be permitted to vote in any Primary Election
17 or Runoff Primary Election of the party held prior to January 1 of
18 the following even-numbered year.

19 SECTION 2. This act shall become effective November 1, 2025.
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